

KALEON

Educational Planning Platform

TERMS OF SERVICE

Effective Date	June 1, 2026
Last Updated	June 1, 2026
Company	Laleon LLC
Platform	Kaleon
Governing Law	State of California
Contact	support@kaleon.org
Status	Beta Release

Laleon LLC • California • support@kaleon.org

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ACCEPTANCE OF TERMS

Welcome to Kaleon, an educational planning platform operated by Laleon LLC, a California limited liability company. These Terms of Service ("Terms") constitute a legally binding agreement between you ("User," "you," or "your") and Laleon LLC ("Kaleon," "we," "us," or "our") governing your access to and use of the Kaleon platform, website, applications, and related services (collectively, the "Services").

BY CREATING AN ACCOUNT, ACCESSING, OR USING THE SERVICES, YOU ACKNOWLEDGE THAT YOU HAVE READ, UNDERSTOOD, AND AGREE TO BE BOUND BY THESE TERMS AND OUR PRIVACY POLICY, WHICH IS INCORPORATED HEREIN BY REFERENCE. IF YOU DO NOT AGREE TO THESE TERMS, YOU MUST NOT ACCESS OR USE THE SERVICES.

If you are using the Services on behalf of an institution, organization, or third party, you represent and warrant that you have the authority to bind that entity to these Terms, and "you" and "User" shall refer to that entity.

1. DEFINITIONS

The following defined terms apply throughout these Terms:

1.1 "Account"

The registered user profile created by you to access and use the Services.

1.2 "Educational Records"

Academic transcripts, course histories, grade point averages, transfer credit evaluations, and other educational information you upload or submit to the Services.

1.3 "Services"

The Kaleon educational planning platform, including all features, tools, AI-powered recommendations, course planning functionality, transfer readiness assessments, and related services available at Kaleon's website and applications.

1.4 "User Content"

Any content, data, information, or materials you upload, submit, post, or otherwise provide through the Services, including Educational Records, academic goals, and profile information.

1.5 "Personalized Pathway"

AI/ML-generated educational planning outputs, recommendations, course sequences, and transfer readiness analyses generated by the Services based on your User Content.

1.6 "Counselor"

An independent educational advisor, counselor, or academic professional who accesses the Services as an independent user and with whom you have voluntarily chosen to share your information and Personalized Pathways.

1.7 "Third-Party Services"

External platforms, APIs, and service providers integrated with or used to power the Services, including but not limited to AI model providers, analytics services, and infrastructure providers as identified in Section 9.

1.8 "Beta Services"

Any features or functionality of the Services designated as "beta," "preview," "experimental," or similar, which may be subject to additional limitations described in Section 12.

1.9 "Intellectual Property Rights"

All patent rights, copyright rights, trademark rights, trade secret rights, and other intellectual property or proprietary rights recognized under applicable law.

2. ABOUT KALEON

Kaleon is an educational planning platform designed to help community college students, transfer students, and other learners better understand academic progress, transfer readiness, course planning options, and educational opportunities. Kaleon uses artificial intelligence and machine learning to generate personalized educational pathway recommendations based on information provided by users.

Kaleon does not provide legal, financial, academic admissions, or professional advising services. Kaleon is not a licensed academic counselor, educational institution, or accredited advising organization. All recommendations generated by the Services are informational only.

3. ELIGIBILITY

To use the Services, you must meet the following eligibility requirements:

3.1 Age Requirement

You must be at least 13 years of age to use the Services. Users between the ages of 13 and 17 must review these Terms with a parent or legal guardian before creating an Account. By using the Services, users under 18 represent that their parent or guardian has reviewed and consented to these Terms on their behalf.

3.2 Legal Capacity

You must have the legal capacity to enter into a binding contract under applicable law. If you lack such capacity, you may not use the Services without parental or guardian consent.

3.3 Authorized Use of Information

You represent and warrant that you are authorized to submit any information, documents, or Educational Records you provide through the Services, and that such information accurately belongs to you or you are otherwise authorized to submit it.

3.4 Compliance with Laws

You must comply with all applicable federal, state, and local laws and regulations in your use of the Services, including but not limited to California law and applicable education privacy laws.

3.5 Accuracy of Information

By using the Services, you represent that the information you provide is accurate to the best of your knowledge.

4. ACCOUNT REGISTRATION AND SECURITY

4.1 Account Creation

To access the Services, you must create an Account by providing accurate and complete information, including your name, email address, academic background, and any other information requested during registration.

4.2 Accurate Information

You agree to provide accurate, current, and complete information during registration and to update such information promptly to keep it accurate and complete. Kaleon may suspend or terminate Accounts created with false or incomplete information.

4.3 Account Security

You are solely responsible for:

- Maintaining the confidentiality of your login credentials;
- All activities that occur under your Account, whether or not authorized;
- Immediately notifying Kaleon at support@kaleon.org of any unauthorized access to your Account or any other security breach.

Kaleon is not liable for any loss or damage resulting from your failure to maintain the security of your Account credentials.

4.4 One Account Per User

You may not create more than one Account. Accounts are personal to you and may not be transferred, sold, or shared with any other person without Kaleon's prior written consent.

4.5 Responsibility for Account Activity

You are responsible for all activity occurring under your Account. If you believe your Account has been compromised, you must notify Kaleon immediately.

5. LICENSE AND RESTRICTIONS

5.1 License Grant

Subject to your compliance with these Terms, Kaleon grants you a limited, non-exclusive, non-transferable, non-sublicensable, revocable license to access and use the Services solely for your personal, non-commercial educational planning purposes.

5.2 License Restrictions

You may not, directly or indirectly:

- Copy, modify, adapt, translate, or create derivative works based on the Services;
- Reverse engineer, decompile, disassemble, or attempt to derive the source code or algorithms of the Services;
- Rent, lease, lend, sell, sublicense, assign, or otherwise transfer access to the Services to any third party;
- Remove, alter, or obscure any proprietary notices, branding, or identifying marks on the Services;
- Use the Services to build a competitive product or service;
- Use the Services in any manner that violates applicable laws or regulations;
- Attempt to gain unauthorized access to any portion of the Services, related systems, or networks;

- Use automated tools, bots, scrapers, or crawlers to access or extract data from the Services without express written permission.

5.3 Third-Party Service Integrations

Your use of Third-Party Services integrated with Kaleon (as described in Section 9) is subject to the separate terms of service and privacy policies of those third parties. Kaleon is not responsible for the practices of Third-Party Services.

6. USER CONTENT AND EDUCATIONAL RECORDS

6.1 Ownership

You retain all ownership rights in your User Content, including your Educational Records. Kaleon does not claim ownership of any User Content you submit through the Services.

6.2 License to User Content

By submitting User Content to the Services, you grant Kaleon a limited, non-exclusive, royalty-free license to use, process, store, and analyze your User Content solely to:

- Provide, operate, and improve the Services;
- Generate Personalized Pathways and educational recommendations for you;
- Comply with applicable legal obligations.

This license does not permit Kaleon to sell your User Content, use it for targeted advertising, or share it with third parties except as described in Section 15 and Section 9.

6.3 Content Restrictions

You may not upload, submit, or transmit User Content that:

- Infringes any third party's intellectual property or privacy rights;
- Contains Social Security numbers, bank account details, credit card information, tax records, or other sensitive personal information unrelated to educational planning;
- Contains viruses, malware, or other harmful code;
- Violates any applicable law or these Terms;
- Misrepresents your identity or academic records.

6.4 Feedback

If you provide Kaleon with feedback, suggestions, or ideas regarding the Services ("Feedback"), you grant Kaleon an unlimited, irrevocable, perpetual, royalty-free license to use, incorporate, and exploit such Feedback without any obligation or compensation to you.

7. TRANSCRIPT UPLOADS

Users may upload transcripts and Educational Records to assist with academic planning. By uploading a transcript or Educational Record, you represent and warrant that:

- The transcript or record belongs to you, or you are authorized to submit it;
- The information submitted is accurate and authentic;
- You understand that transcript information will be processed by Kaleon's AI/ML systems to generate Personalized Pathways and educational recommendations.

7.1 Sensitive Information Prohibition

You must not upload documents containing Social Security numbers, bank or credit card information, tax records, medical records, or other sensitive personal information not relevant to educational planning. Kaleon is not responsible for harm arising from your upload of prohibited information.

7.2 Data Processing Acknowledgment

By uploading Educational Records, you acknowledge and consent to Kaleon processing such records through its AI/ML systems and, where you have granted access, through Third-Party AI service providers described in Section 9, solely for the purpose of generating educational recommendations.

8. AI-POWERED FEATURES AND PERSONALIZED PATHWAYS

8.1 AI/ML Processing Disclosure

Kaleon uses artificial intelligence and machine learning ("AI/ML") technologies to analyze your User Content, including Educational Records and academic goals, to generate Personalized Pathways. These AI/ML systems are operated by Kaleon and may leverage Third-Party AI providers as described in Section 9.

8.2 Informational Nature of AI Outputs

All Personalized Pathways, course recommendations, transfer readiness assessments, and other AI-generated outputs are for informational purposes only. They are not a substitute for advice from a licensed academic counselor or your educational institution. Kaleon makes no guarantee that AI-generated recommendations are accurate, complete, or appropriate for your specific circumstances.

8.3 AI System Limitations

You acknowledge that AI/ML systems may:

- Produce incomplete, outdated, or inaccurate recommendations;
- Fail to account for unique institutional requirements, recent policy changes, or individual circumstances;
- Reflect limitations of the training data and model design;
- Produce different results based on input variations.

8.4 Human Review Recommended

You are strongly advised to verify all AI-generated recommendations with your institution, a licensed academic counselor, or other qualified educational professional before making any enrollment, transfer, or academic decisions.

8.5 No Student Profiling for Non-Educational Purposes

Kaleon does not use AI/ML systems to build student profiles for commercial purposes, targeted advertising, or any purpose other than providing and improving the educational planning Services. This prohibition applies regardless of your consent.

9. THIRD-PARTY INTEGRATIONS AND SERVICE PROVIDERS

The Services integrate with or may rely upon the following Third-Party Services to provide functionality. By using the Services, you acknowledge and consent to the processing of your data by these providers, subject to their respective terms and privacy policies:

Third-Party Service	Purpose	Data Shared
Anthropic (Claude)	AI model powering educational pathway generation	User Content, Educational Records (anonymized where possible)
OpenAI	AI model for supplemental planning recommendations	User Content (anonymized where possible)
Perplexity AI	Research and information retrieval for course/transfer data	Academic queries (non-identifiable)
Cursor	Development and platform operations	Platform metadata only
Assist.org	California community college transfer articulation data	Course and program queries (non-identifiable)
Google Analytics	Platform analytics and performance monitoring	Anonymized usage data, no Educational Records
Cloudflare	Content delivery, security, and infrastructure	IP addresses, request metadata

9.1 Third-Party Responsibility

Your use of any Third-Party Services is subject to their respective terms of service and privacy policies. Kaleon is not responsible for the privacy practices, data handling, or content of Third-Party Services.

9.2 Data Minimization

Kaleon uses commercially reasonable efforts to minimize the personal data shared with Third-Party Services and to anonymize or pseudonymize data where technically feasible before transmission.

9.3 Changes to Integrations

Kaleon may add, modify, or remove Third-Party Service integrations at any time. Material changes to integrations that affect how your personal data is processed will be disclosed through updates to these Terms or the Privacy Policy.

10. EDUCATIONAL PLANNING DISCLAIMER

Kaleon provides educational planning tools and informational recommendations only. Recommendations generated through the Services may include:

- Course planning suggestions and sequencing;
- Transfer readiness assessments;
- Educational pathway recommendations;
- Academic progress tracking and analysis;
- Transfer articulation information based on publicly available data.

ALL RECOMMENDATIONS ARE INFORMATIONAL ONLY AND DO NOT CONSTITUTE ACADEMIC ADVISING, ENROLLMENT COUNSELING, OR PROFESSIONAL EDUCATIONAL SERVICES.

Students must verify course selections, transfer requirements, degree requirements, enrollment timelines, and financial aid information with their educational institution, official academic counselor, or appropriate

institutional representative before acting on any Kaleon recommendation. Kaleon is not a substitute for official academic advising.

11. COUNSELOR ACCESS FEATURES

11.1 Voluntary Student-Initiated Sharing

Students may choose to share their Kaleon information, Educational Records, and Personalized Pathways with Counselors through the Services. All such sharing is voluntary and must be explicitly initiated and authorized by the student.

11.2 Independent Counselors

Counselors who access the Services are independent users who operate independently of Kaleon. Counselors are not employees, agents, contractors, or representatives of Kaleon. Kaleon has no control over, and expressly disclaims responsibility for:

- Any advice, recommendations, or guidance provided by Counselors;
- Decisions made by Counselors based on information shared through the Services;
- Communications between students and Counselors;
- Actions taken by either students or Counselors based on Counselor recommendations.

11.3 Student Consent Required

Counselors may only access a student's information and Personalized Pathways if and to the extent that the student has explicitly granted such access. Students may revoke Counselor access at any time through their Account settings.

11.4 Counselor Responsibility

Counselors who use the Services are independently responsible for their own professional conduct, the accuracy of their guidance, compliance with applicable professional standards, and any applicable licensing or credentialing requirements. Kaleon does not verify the credentials, qualifications, or professional standing of Counselors.

12. BETA SOFTWARE DISCLAIMER

Kaleon is currently offered as a beta platform. All or substantially all of the Services should be considered Beta Services at this stage of development. By using the Services, you acknowledge and agree that:

- The Services are experimental and may contain bugs, errors, or defects;
- AI/ML outputs may be incomplete, inaccurate, or inconsistent;
- Features may change, be removed, or become unavailable without prior notice;
- Data availability and accuracy may be limited;
- Service performance may vary and is not guaranteed;
- The Services may be suspended, interrupted, or discontinued at any time.

Beta Services are provided "AS IS" and "AS AVAILABLE" without warranties of any kind. Your use of Beta Services is entirely at your own risk. Kaleon is not liable for any harm, data loss, or damages resulting from the experimental nature of the Services.

13. ACCEPTABLE USE POLICY

By using the Services, you agree not to engage in any of the following prohibited activities:

Illegal Activities

- Use the Services for any unlawful purpose or in violation of any applicable law;
- Upload, transmit, or facilitate the distribution of illegal content.

Identity and Information Fraud

- Misrepresent your identity, academic background, or institutional affiliation;
- Submit fraudulent, altered, or falsified Educational Records or transcripts;
- Attempt to access Accounts belonging to other users.

Security Violations

- Upload or transmit viruses, malware, ransomware, or other harmful code;
- Attempt to probe, scan, or test the vulnerability of the Services;
- Circumvent or attempt to bypass any security measures or authentication systems;
- Interfere with or disrupt the operation of the Services or connected infrastructure.

Intellectual Property Violations

- Use the Services to infringe copyright, trademark, or other intellectual property rights;
- Attempt to reverse engineer, decompile, or extract proprietary algorithms or source code.

Abusive Conduct

- Harass, threaten, or intimidate other users;
- Engage in discriminatory conduct or hate speech.

13.1 Enforcement

Kaleon reserves the right to investigate suspected violations of this Acceptable Use Policy and to suspend or permanently terminate Accounts found to be in violation. Kaleon may also report violations to appropriate law enforcement authorities.

14. INTELLECTUAL PROPERTY

14.1 Kaleon Ownership

The Services, including all software, algorithms, AI/ML models, branding, content, designs, user interfaces, and related materials (excluding User Content), are owned by Kaleon LLC or its licensors and are protected by United States and international copyright, trademark, patent, and other intellectual property laws.

14.2 No Ownership Transfer

These Terms do not grant you any ownership rights in the Services or Kaleon's intellectual property. Your license to use the Services is limited as described in Section 5.

14.3 Trademarks

"Kaleon," the Kaleon logo, and related marks are trademarks of Kaleon LLC. You may not use Kaleon's trademarks, trade names, or logos without Kaleon's prior written consent.

14.4 Restrictions on Exploitation

You may not copy, distribute, modify, sublicense, sell, or create derivative works from Kaleon's intellectual property without express prior written permission from Kaleon.

15. DATA PRIVACY AND REGULATORY COMPLIANCE

Kaleon is committed to protecting the privacy and security of your data in compliance with applicable federal and California state laws. The following regulatory frameworks apply to your use of the Services:

Regulation	How Kaleon Complies
FERPA	Kaleon processes Educational Records submitted by users. Kaleon does not share Educational Records with third parties except as necessary to provide the Services, as authorized by the student, or as required by law.
CCPA / CPRA	California residents have the right to know, access, correct, and delete their personal information. Kaleon does not sell personal information. Requests may be submitted to support@kaleon.org .
SOPIPA	Kaleon does not use student data for targeted advertising, commercial profiling, or any purpose unrelated to educational planning. This applies to all users, including K-12 students where applicable.
COPPA	Users under 13 are not the primary target audience. If Kaleon becomes aware that a user under 13 has created an Account without verifiable parental consent, Kaleon will promptly delete such Account and data.

15.1 No Sale of Personal Information

Kaleon does not and will not sell, rent, or trade your personal information or Educational Records to any third party for any purpose.

15.2 No Targeted Advertising

Kaleon does not use your User Content or Educational Records for targeted advertising, behavioral advertising, or commercial student profiling. Kaleon products are ad-free.

15.3 Data Security

Kaleon implements commercially reasonable technical and organizational security measures to protect your data against unauthorized access, alteration, disclosure, or destruction. However, no security system is impenetrable, and Kaleon cannot guarantee absolute security.

15.4 Data Breach Notification

In the event of a data security breach affecting your personal information, Kaleon will notify you and applicable regulatory authorities as required by California law (California Civil Code Section 1798.29 and Section 1798.82) and other applicable laws.

15.5 Privacy Policy

Kaleon's Privacy Policy, available at [\[INSERT PRIVACY POLICY URL\]](#), provides further detail on how your personal information is collected, used, stored, and protected. The Privacy Policy is incorporated into these Terms by reference.

16. DATA RETENTION AND DELETION

16.1 Retention Period

Kaleon retains your User Content and personal information for as long as your Account is active or as needed to provide the Services. Certain anonymized or aggregated data may be retained for analytics, security, or legal purposes following Account deletion.

16.2 Deletion Requests

You may request deletion of your Account and associated personal data at any time by submitting a written request to support@kaleon.org. Kaleon will process verified deletion requests within 30 days of receipt of a valid request.

16.3 Effect of Deletion

Upon Account deletion:

- Your personal information and User Content will be deleted from Kaleon's active systems within 30 days;
- You will lose access to your Account, Personalized Pathways, and saved information;
- Anonymized or aggregated data derived from your use may be retained for research and service improvement purposes;
- Certain data may be retained as required by applicable law or to resolve outstanding disputes.

16.4 Data Export

You may request a copy of your personal data prior to deletion by contacting support@kaleon.org. Data export requests will be fulfilled within 30 days.

17. NO GUARANTEE OF EDUCATIONAL OUTCOMES

Kaleon does not guarantee, and expressly disclaims any representation regarding:

- Admission to any educational institution;
- Transfer acceptance or enrollment;
- Degree completion or graduation timelines;
- Scholarship or financial aid eligibility or awards;
- Academic success or grade performance;
- Accuracy of third-party transfer articulation data from systems such as Assist.org;
- Any specific educational or career outcome.

Educational outcomes depend on numerous factors outside Kaleon's control, including institutional policies, individual student performance, enrollment availability, and applicable regulations. Kaleon's recommendations are informational only and should never be the sole basis for academic decisions.

18. SERVICE AVAILABILITY

Kaleon does not guarantee uninterrupted, error-free, or secure access to the Services. The Services may be subject to:

- Scheduled or emergency maintenance periods;
- Temporary or extended service interruptions;

- Technical failures, bugs, or performance degradation;
- Feature modifications, additions, or removals;
- Complete or partial discontinuation of the Services.

Kaleon reserves the right to modify, suspend, or discontinue any portion of the Services at any time with or without notice. Kaleon shall not be liable for any interruption, modification, or discontinuation of the Services.

19. DISCLAIMER OF WARRANTIES

THE SERVICES ARE PROVIDED "AS IS" AND "AS AVAILABLE" WITHOUT WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED. TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, KALEON EXPRESSLY DISCLAIMS ALL WARRANTIES, INCLUDING:

- IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT;
- WARRANTIES THAT THE SERVICES WILL BE UNINTERRUPTED, ERROR-FREE, OR SECURE;
- WARRANTIES REGARDING THE ACCURACY, COMPLETENESS, OR RELIABILITY OF AI-GENERATED RECOMMENDATIONS OR CONTENT;
- WARRANTIES THAT THE SERVICES WILL MEET YOUR SPECIFIC REQUIREMENTS OR EDUCATIONAL NEEDS;
- WARRANTIES REGARDING THE ACCURACY OF THIRD-PARTY DATA, INCLUDING TRANSFER ARTICULATION INFORMATION.

YOUR USE OF THE SERVICES IS ENTIRELY AT YOUR OWN RISK.

20. LIMITATION OF LIABILITY

20.1 Liability Cap

TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, KALEON'S TOTAL LIABILITY TO YOU FOR ANY CLAIMS ARISING OUT OF OR RELATED TO THESE TERMS OR THE SERVICES SHALL NOT EXCEED THE GREATER OF: (A) THE TOTAL AMOUNT YOU PAID TO KALEON IN THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO LIABILITY; OR (B) ONE HUNDRED DOLLARS (\$100.00). AS THE SERVICES ARE CURRENTLY PROVIDED FREE OF CHARGE, THE APPLICABLE CAP SHALL BE \$100.00.

20.2 Exclusion of Damages

TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, KALEON SHALL NOT BE LIABLE FOR:

- INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, PUNITIVE, OR EXEMPLARY DAMAGES;
- LOSS OF PROFITS, REVENUE, DATA, BUSINESS OPPORTUNITIES, OR EDUCATIONAL OPPORTUNITIES;

- EDUCATIONAL, ENROLLMENT, TRANSFER, OR ADMISSIONS DECISIONS AND THEIR OUTCOMES;
- DATA LOSS OR CORRUPTION;
- COSTS OF SUBSTITUTE SERVICES;
- ANY DAMAGES ARISING FROM YOUR RELIANCE ON AI-GENERATED RECOMMENDATIONS.

EVEN IF KALEON HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES, AND EVEN IF ANY LIMITED REMEDY FAILS OF ITS ESSENTIAL PURPOSE.

20.3 Basis of the Bargain

You acknowledge that the limitations of liability in this Section 20 reflect a reasonable allocation of risk and are a fundamental part of the basis of the bargain between you and Kaleon, without which Kaleon would not provide the Services.

21. INDEMNIFICATION

You agree to defend, indemnify, and hold harmless Kaleon, Laleon LLC, and their respective officers, founders, employees, contractors, advisors, and affiliates (collectively, the "Kaleon Parties") from and against any and all claims, liabilities, damages, losses, costs, and expenses (including reasonable attorneys' fees) arising out of or related to:

- Your use of or access to the Services;
- Your User Content, including any Educational Records you submit;
- Your violation of these Terms;
- Your violation of any third party's rights, including intellectual property or privacy rights;
- Your violation of any applicable law or regulation.

Kaleon reserves the right to assume exclusive control of any matter subject to indemnification by you, in which case you agree to cooperate with Kaleon in asserting available defenses.

22. DISPUTE RESOLUTION AND ARBITRATION

22.1 Informal Resolution

Before initiating any formal legal proceeding, you agree to contact Kaleon at support@kaleon.org and attempt to resolve the dispute informally. Kaleon will attempt to resolve the dispute within thirty (30) days of receiving your written notice. If the dispute is not resolved within that period, either party may proceed as set forth in this Section.

22.2 Binding Arbitration

PLEASE READ THIS SECTION CAREFULLY. IT AFFECTS YOUR LEGAL RIGHTS, INCLUDING YOUR RIGHT TO FILE A LAWSUIT IN COURT.

Except as set forth below, any dispute, claim, or controversy arising out of or relating to these Terms, the Privacy Policy, or the Services, including disputes regarding the formation, validity, enforceability, or scope of this arbitration agreement, shall be resolved by final and binding individual arbitration rather than in court.

Arbitration shall be conducted by the American Arbitration Association ("AAA") pursuant to its Consumer Arbitration Rules, available at www.adr.org. The arbitration shall be conducted by a single neutral arbitrator. The arbitrator's decision shall be final and binding and may be entered as a judgment in any court of competent jurisdiction.

Exceptions: The following claims are not subject to arbitration:

- Claims filed in small claims court, provided the matter qualifies and remains in small claims court;
- Applications for injunctive or emergency equitable relief to prevent infringement of intellectual property rights or to prevent irreparable harm pending arbitration.

22.3 Class Action Waiver

YOU AND KALEON AGREE THAT EACH MAY BRING CLAIMS AGAINST THE OTHER ONLY IN YOUR OR ITS INDIVIDUAL CAPACITY AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS, COLLECTIVE, REPRESENTATIVE, OR MULTI-PARTY ACTION OR PROCEEDING.

If the class action waiver in this section is found unenforceable, the entirety of Section 22.2 shall be null and void.

22.4 Arbitration Opt-Out

You have the right to opt out of the binding arbitration provision and class action waiver. To opt out, you must send written notice to Kaleon within thirty (30) days of first accepting these Terms. Your opt-out notice must include your full name, email address associated with your Account, and a clear statement that you are opting out of arbitration. Send opt-out notices to:

Laleon LLC
Attn: Legal Department - Arbitration Opt-Out
California
Email: support@kaleon.org

Opting out of arbitration does not affect any other provision of these Terms.

23. DMCA COPYRIGHT POLICY

23.1 Notification of Copyright Infringement

Kaleon respects intellectual property rights. If you believe that content available through the Services infringes your copyright, please submit a written notification to Kaleon's designated DMCA Agent at support@kaleon.org with the following information:

- An electronic or physical signature of the person authorized to act on behalf of the copyright owner;
- A description of the copyrighted work you claim has been infringed;
- A description of where the allegedly infringing material is located within the Services;
- Your contact information (address, telephone number, email address);
- A statement that you have a good faith belief that the use is not authorized by the copyright owner, its agent, or the law;

- A statement, made under penalty of perjury, that the information in the notification is accurate and that you are authorized to act on behalf of the copyright owner.

23.2 Counter-Notification

If you believe your content was removed in error, you may submit a counter-notification to support@kaleon.org containing: your signature, identification of the removed content and its prior location, a statement under penalty of perjury that the material was removed in error, and your contact information.

23.3 Repeat Infringer Policy

Kaleon will terminate the Accounts of users who are found to be repeat infringers of copyright in accordance with applicable law.

24. CHANGES TO THESE TERMS

Kaleon may update or modify these Terms periodically. When material changes are made, Kaleon will:

- Post the updated Terms on the Services with a new "Last Updated" date;
- Send an email notification to the address associated with your Account where practicable;
- Display a prominent notice within the Services.

Your continued use of the Services after the effective date of any updated Terms constitutes your acceptance of the revised Terms. If you do not agree to the revised Terms, you must stop using the Services and may request Account deletion pursuant to Section 16.

25. GOVERNING LAW AND JURISDICTION

25.1 Governing Law

These Terms shall be governed by and construed in accordance with the laws of the State of California, without regard to its conflict of laws principles. Kaleon is organized and operated as a California limited liability company, and these Terms reflect the application of California law.

25.2 Applicable California Laws

To the extent applicable, these Terms are subject to the following California statutes, among others:

- California Consumer Privacy Act (CCPA) / California Privacy Rights Act (CPRA);
- California Student Online Personal Information Protection Act (SOPIPA), Business & Professions Code Section 22584;
- California Education Code Section 49073.1;
- California Civil Code Section 1798.29 and Section 1798.82 (data breach notification);
- California Business and Professions Code Section 17200 (unfair business practices).

25.3 Venue

For any disputes not subject to arbitration under Section 22, the parties consent to the exclusive jurisdiction of the state and federal courts located within the State of California. You waive any objection to personal jurisdiction or venue in such courts.

26. CONTACT INFORMATION

For questions, concerns, or notices regarding these Terms, please contact Kaleon at:

Company	Laleon LLC
Platform	Kaleon
Email	support@kaleon.org
Location	California, United States
Privacy Requests	support@kaleon.org
DMCA Agent	support@kaleon.org
Legal / Arbitration	support@kaleon.org

GENERAL PROVISIONS

Severability

If any provision of these Terms is found to be invalid, illegal, or unenforceable under applicable law, such provision shall be modified to the minimum extent necessary to make it enforceable. The remaining provisions of these Terms shall continue in full force and effect.

Waiver

Kaleon's failure to enforce any right or provision of these Terms shall not constitute a waiver of such right or provision. Any waiver must be in writing and signed by an authorized representative of Kaleon.

Entire Agreement

These Terms, together with the Privacy Policy and any other legal notices or policies published by Kaleon, constitute the entire agreement between you and Kaleon with respect to the Services and supersede all prior agreements, representations, and understandings.

Assignment

You may not assign or transfer your rights or obligations under these Terms without Kaleon's prior written consent. Kaleon may freely assign these Terms in connection with a merger, acquisition, or sale of assets.

Survival

The following sections shall survive termination of these Terms: Sections 6.2 (License to User Content), 14 (Intellectual Property), 16 (Data Retention), 19 (Disclaimer of Warranties), 20 (Limitation of Liability), 21 (Indemnification), 22 (Dispute Resolution and Arbitration), 23 (DMCA), and 25 (Governing Law).